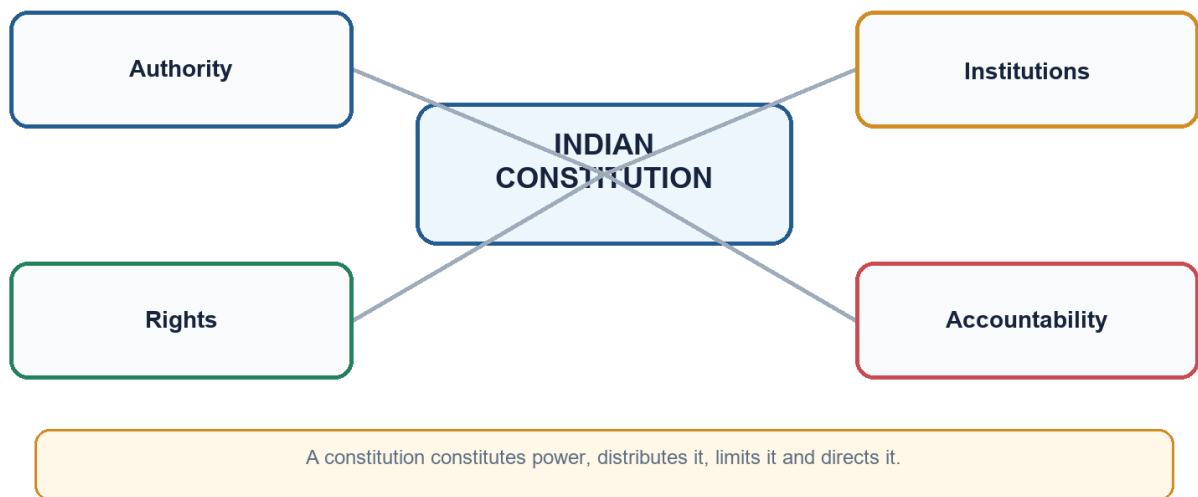


Salient Features of the Indian Constitution

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

CONSTITUTIONAL ARCHITECTURE



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

Salient Features of the Indian Constitution - Learner-v2 Source-Complete Learning Session 3

BASIC MCQS / REMEDIATION 3

Practice rule and exact option rotation 3

40 core diagnostic MCQs 3

8 remedial MCQs 11

PYQS AND ANSWER PRACTICE 13

Verified PYQ provenance and count 13

Solved Prelims PYQs 14

Six original solved Mains models 16

Salient Features of the Indian Constitution - Learner-v2

Source-Complete Learning Session

BASIC MCQS / REMEDIATION

Practice rule and exact option rotation

The 48 questions form one continuous sequence. Correct answers rotate exactly A -> B -> C -> D twelve times, without repetition or reset.

40 core diagnostic MCQs

Core MCQ 1

Question. Which description best captures a salient constitutional feature?

- A. A system-level characteristic produced by interacting rules and institutions
- B. A single Article only
- C. Any political slogan used by a court
- D. A closed list identical to basic structure

Answer: A. A feature explains constitutional design at system level; it is not reducible to one Article or to the basic-structure list.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 2

Question. Which statement about the Constitution's original form is correct?

- A. It began with 25 Parts and 12 Schedules
- B. It contained a Preamble, 395 Articles, 22 Parts and 8 Schedules
- C. It contained about 470 Articles and 12 Schedules
- D. It had no administrative provisions

Answer: B. The historical count is stable and exam-safe: Preamble, 395 Articles, 22 Parts and 8 Schedules.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 3

Question. Why should a learner avoid one unqualified current Article total?

- A. The Constitution contains no Articles
- B. All Articles were repealed in 1950
- C. Inserted, omitted and renumbered provisions make totals counting-method dependent
- D. Only Schedules can be amended

Answer: C. Parts and Schedules are safer current markers; the owner expressly retains the Article-count caveat.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 4

Question. Which is NOT a universal requirement for an Article 368 amendment?

- A. Special majority in Parliament
- B. A majority of total membership plus two-thirds present and voting
- C. State ratification for specified federal matters

- D. A nationwide referendum

Answer: D. India has no universal constitutional referendum requirement.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 5

Question. The most substantial structural source of the Constitution was the:

- A. Government of India Act, 1935
- B. French Constitution alone
- C. Swiss Constitution alone
- D. Charter Act, 1813 alone

Answer: A. The 1935 Act supplied much administrative and institutional architecture, later democratically transformed.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 6

Question. The Concurrent List and joint sitting are conventionally traced to:

- A. Canada
- B. Australia
- C. Ireland
- D. Japan

Answer: B. Australia is the standard source association; Canada is linked to a strong-Centre federation.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 7

Question. Directive Principles of State Policy are conventionally traced to:

- A. United States
- B. USSR
- C. Ireland
- D. South Africa

Answer: C. Ireland is the conventional source for DPSP, nomination to Rajya Sabha and the presidential-election method.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 8

Question. Which borrowed model did India consciously reject?

- A. Cabinet responsibility
- B. Judicial review
- C. Directive Principles
- D. British-style unlimited parliamentary sovereignty

Answer: D. India adopted responsible government but placed Parliament under a written supreme Constitution and judicial review.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 9

Question. Which route illustrates constitutional flexibility outside Article 368?

- A. Simple-majority change for specified matters
- B. Mandatory referendum
- C. Executive order amending any Part
- D. Unanimous State ratification

Answer: A. Some constitution-related changes follow ordinary legislative procedure outside Article 368.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 10

Question. Ratification by at least half the States is required for:

- A. Every amendment
- B. Specified federal provisions under the Article 368 proviso
- C. Only Fundamental Duties
- D. No constitutional amendment

Answer: B. The ratification limb protects specified federal features; it is not universal.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 11

Question. Article 1 describes India as a:

- A. Federation of sovereign States
- B. Confederation
- C. Union of States
- D. Unitary republic

Answer: C. The word is 'Union of States'; the Constitution does not use 'Federation'.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 12

Question. Constitutional asymmetry is best understood as:

- A. A right of States to secede
- B. The end of common citizenship
- C. A temporary emergency only
- D. Differentiated arrangements used to accommodate distinct histories and communities

Answer: D. Asymmetry can support integration while preserving common citizenship and constitutional rights.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 13

Question. At Union level, collective responsibility primarily runs to the:

- A. Lok Sabha
- B. Rajya Sabha
- C. Supreme Court
- D. Election Commission

Answer: A. Article 75 links the Council of Ministers to the House of the People.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 14

Question. Parliamentary fusion means that:

- A. Courts and legislatures are the same body
- B. The executive is drawn from and politically responsible to the legislature
- C. The President personally governs without advice
- D. Judicial review disappears

Answer: B. Fusion describes executive-legislative connection, not the absence of constitutional checks.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 15

Question. In the Indian synthesis of Parliament and courts, ultimate legal supremacy belongs to the:

- A. Cabinet
- B. Supreme Court as an unlimited sovereign
- C. Constitution
- D. Rajya Sabha

Answer: C. Parliament and courts exercise assigned powers; the Constitution remains supreme.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 16

Question. Which claim is incorrect?

- A. Parliament has broad legislative power
- B. Courts exercise judicial review
- C. Amending power is basic-structure limited
- D. Indian Parliament is sovereign in the British sense

Answer: D. Written competence, rights, federalism, review and basic structure reject Westminster-style absolute sovereignty.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 17

Question. Article 50 concerns:

- A. Separation of the judiciary from the executive in State public services
- B. Finance Commission composition
- C. Emergency proclamation
- D. Official language

Answer: A. Article 50 is a DPSP and a key separation-of-powers marker.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 18

Question. Executive ordinance powers are found in:

- A. Articles 32 and 226

- B. Articles 123 and 213
- C. Articles 14 and 15
- D. Articles 324 and 280

Answer: B. The President and Governors exercise constitutionally conditioned ordinance powers under Articles 123 and 213.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 19

Question. Which case directly states that India does not contemplate rigid separation?

- A. S.R. Bommai
- B. Minerva Mills
- C. Ram Jawaya Kapur
- D. Kesavananda alone

Answer: C. Ram Jawaya Kapur is the direct proposition; later basic-structure cases protect separation and review.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 20

Question. Which statement is wrong?

- A. Core functions are differentiated
- B. Overlaps may be constitutional
- C. Checks seek to prevent concentration
- D. India follows absolute organ isolation

Answer: D. India follows functional separation with reciprocal checks, not absolute isolation.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 21

Question. Rule of law primarily rejects:

- A. Arbitrary public power
- B. All delegated legislation
- C. Every restriction on liberty
- D. Judicial remedies

Answer: A. Rule of law requires legal authority, equality, non-arbitrariness and remedies.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 22

Question. A constitutional government is, by definition, a:

- A. Government elected every year
- B. Limited government
- C. Government without courts
- D. Government run only by a legislature

Answer: B. Constitutional government is defined by enforceable limits on authority.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 23

Question. Which cluster most directly enables judicial review and remedies?

- A. Articles 74, 75 and 78
- B. Articles 352, 356 and 360
- C. Articles 13, 32 and 226
- D. Articles 343, 344 and 351

Answer: C. Articles 13, 32 and 226 are central review and remedy anchors.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 24

Question. Judicial independence does NOT mean:

- A. Security from improper influence
- B. Protected institutional conditions
- C. Ability to review unconstitutional action
- D. Judicial sovereignty free from constitutional limits

Answer: D. Independence enables impartial adjudication; it does not remove courts from constitutional limits.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 25

Question. Fundamental Rights are principally:

- A. Justiciable guarantees subject to constitutional restrictions
- B. Non-justiciable directives only
- C. Penal duties of citizens
- D. Temporary conventions

Answer: A. Part III supplies enforceable rights and remedies, though rights are not absolute.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 26

Question. Article 37 describes Directive Principles as:

- A. Judicially enforceable exactly like rights
- B. Non-justiciable but fundamental in governance
- C. Outside the Constitution
- D. Emergency-only provisions

Answer: B. DPSP are non-justiciable but fundamental in governance and must inform State law-making.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 27

Question. Which case is a central authority for harmony between Rights and DPSP?

- A. Ram Jawaya
- B. S.R. Bommai
- C. Minerva Mills
- D. Rajendra N. Shah

Answer: C. Minerva Mills treats balance between Parts III and IV as constitutionally central.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 28

Question. Fundamental Duties are:

- A. Directly enforceable writs in every case
- B. Only State duties
- C. Outside constitutional interpretation
- D. Non-justiciable civic duties that may receive legislative effect

Answer: D. Duties do not automatically create offences; legislation may give particular duties legal effect.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 29

Question. Indian secularism is best described as:

- A. Equal citizenship and principled State engagement with religion
- B. An official State religion
- C. Complete withdrawal from all religious matters
- D. Rule by religious majorities

Answer: A. The Constitution protects conscience and equality while permitting regulation and reform within limits.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 30

Question. The words 'socialist', 'secular' and 'integrity' were inserted by the:

- A. 44th Amendment
- B. 42nd Amendment
- C. 61st Amendment
- D. 73rd Amendment

Answer: B. The 42nd Amendment, 1976 inserted these expressions; related constitutional commitments pre-dated the wording.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 31

Question. Universal adult franchise chiefly constitutionalised:

- A. Administrative centralisation
- B. Judicial appointment
- C. Equal political membership
- D. Dual citizenship

Answer: C. The Constitution trusted adult citizens with political equality from commencement.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 32

Question. Which is correct about voting age?

- A. It was always 18
- B. It is fixed by the Preamble

- C. It was reduced by the 73rd Amendment
- D. It was reduced from 21 to 18 by the 61st Amendment

Answer: D. The 61st Amendment Act, 1988 reduced the voting age.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 33

Question. Single citizenship primarily promotes:

- A. Common national civil and political membership
- B. State secession
- C. Dual judicial systems
- D. Separate State passports

Answer: A. Single citizenship coexists with State identities and federal government.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 34

Question. All-India Services are constitutionally significant because they:

- A. Belong only to municipalities
- B. Bridge common recruitment and Union-State administration
- C. Eliminate State governments
- D. Replace the judiciary

Answer: B. They create administrative unity while raising legitimate federal-control questions.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 35

Question. Which statement about constitutional bodies is correct?

- A. All commissions are constitutional
- B. All bodies have identical removal safeguards
- C. Their source, tenure, powers and safeguards differ
- D. Independence eliminates accountability

Answer: C. ECI, CAG, PSCs and Finance Commission have distinct constitutional designs.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 36

Question. Which is NOT necessarily a constitutional body?

- A. Election Commission
- B. CAG
- C. UPSC
- D. A commission created only by statute

Answer: D. A statutory commission derives from legislation, not directly from the Constitution.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 37

Question. A National Emergency is proclaimed under:

- A. Article 352
- B. Article 356
- C. Article 360
- D. Article 368

Answer: A. Article 352 concerns war, external aggression or armed rebellion under current text.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 38

Question. The 44th Amendment strengthened emergency safeguards by:

- A. Removing Articles 20 and 21
- B. Replacing 'internal disturbance' with 'armed rebellion' and protecting Articles 20 and 21
- C. Making emergency permanent
- D. Ending parliamentary approval

Answer: B. The post-1975 reform tightened triggers and rights safeguards.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 39

Question. The constitutional third tier was principally added by:

- A. 42nd and 44th Amendments
- B. 61st and 69th Amendments
- C. 73rd and 74th Amendments
- D. 86th and 97th Amendments

Answer: C. The 73rd and 74th Amendments constitutionalised Panchayats and Municipalities.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 40

Question. After *Rajendra N. Shah* (2021), which statement is safest?

- A. Article 43B was invalidated
- B. The entire 97th Amendment disappeared
- C. Part IX-B governs all State cooperatives
- D. State-cooperative application of Part IX-B was invalidated while the multi-State field survived

Answer: D. The Court preserved Article 19(1)(c), Article 43B and the multi-State operation while enforcing federal ratification limits.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

8 remedial MCQs

Remedial MCQ 1

Question. Which distinction is correct?

- A. Salient features and basic structure overlap but are not identical
- B. Every feature is a basic-structure element
- C. Basic structure is a textual Schedule
- D. A feature must be one Article

Answer: A. The two categories overlap, but basic structure is a judicial limit on amendment and has no closed textual schedule.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Remedial MCQ 2

Question. What is the safest Article-count formulation?

- A. The current total is permanently fixed
- B. Original counts are exact; later totals require a counting caveat
- C. Only courts may count Articles
- D. There are no omitted provisions

Answer: B. Use the original 395/22/8 counts and qualify later totals.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Remedial MCQ 3

Question. Which classification is best?

- A. Purely unitary
- B. A compact among sovereign States
- C. Federal in structure with centralising, cooperative and asymmetric dimensions
- D. A confederation with secession rights

Answer: C. The qualified formulation captures both constitutional distribution and Union strength.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Remedial MCQ 4

Question. What is the correct current-status distinction for the 106th Amendment?

- A. It has not been enacted
- B. Reservation was operational from 2023
- C. It automatically applied to the 2024 election
- D. It commenced on 16 April 2026 but reservation awaits the Article 334A census-publication and delimitation sequence

Answer: D. Gazette commencement and operational reservation are distinct legal stages.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Remedial MCQ 5

Question. Constitutional morality is best understood as:

- A. Text-linked fidelity to constitutional forms, values and restraint
- B. A judge's private morality
- C. Majority preference alone
- D. A substitute for constitutional text

Answer: A. The doctrine disciplines institutions and protects constitutional values only when anchored in text and structure.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Remedial MCQ 6

Question. Which dated J&K statement is supported by official sources checked for this package?

- A. Statehood was restored in 2023
- B. The Article 370 decision was delivered in December 2023 and J&K remains a Union Territory with a legislature as checked on 21 August 2026
- C. The Supreme Court fixed a restoration deadline
- D. The Constitution still recognises the pre-2019 separate State Constitution

Answer: B. The Court upheld the changes and directed early statehood restoration without a deadline; no restoration notification was located in the official sources checked.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Remedial MCQ 7

Question. Part IX-A concerns:

- A. Panchayats
- B. Cooperative societies
- C. Municipalities
- D. Emergency provisions

Answer: C. Panchayats are Part IX; Municipalities Part IX-A; cooperatives Part IX-B; emergencies Part XVIII.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Remedial MCQ 8

Question. Which claim is incorrect?

- A. India has an official-language framework
- B. The Constitution protects linguistic minorities
- C. Language arrangements can be asymmetric
- D. The Constitution declares Hindi the national language

Answer: D. The Constitution does not declare a national language.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

PYQS AND ANSWER PRACTICE

Verified PYQ provenance and count

Corpus	Verified items retained	Provenance
Mains GS-II	2	Repository Mains routing ledger; wording cross-checked against the UPSC previous-paper listing and corroborating reproductions
Prelims GS-I	9	Repository routing ledgers; exact wording retained only where locally extracted; 2024 Q74 key checked against the official Set-A key
Total	11	No PYQ is invented; demand-only entries are not reverse-engineered into fictional options

Mains PYQ 1 - UPSC 2019 GS-II Q1

Question: "Do you think that the Constitution of India does not accept the principle of strict separation of powers rather it is based on the principle of 'checks and balance'? Explain." **10 marks · 150 words.**

Provenance: Official UPSC previous-paper listing; repository ledger
_PYQ-ROUTING-MAINS-GS1-GS2-ESSAY-2018-2023.md, 2019 GS-II Q1.

Model answer

[ANALYSIS] India rejects complete organ isolation and adopts functional differentiation reinforced by reciprocal checks. This is necessary because parliamentary government deliberately fuses the executive with the legislature.

[FACT] Separation markers include Article 50, which directs separation of the judiciary from the executive; Articles 121 and 211, which protect judges from ordinary legislative discussion of conduct; and Articles 122 and 212, which protect legislative procedure. *Ram Jawaya Kapur* (1955) therefore held that the Constitution does not contemplate a rigid separation.

[FACT] Overlaps are equally deliberate: the executive participates in legislation and promulgates ordinances under Articles 123 and 213; Parliament exercises constituent power under Article 368; courts frame rules, punish contempt and review legislation through Articles 13, 32 and 226. Executive responsibility under Article 75, legislative scrutiny and judicial review make each branch answerable.

[LIMIT] Overlap is constitutional only while it preserves each organ's core role. *Kesavananda Bharati* and *Indira Nehru Gandhi v. Raj Narain* protect separation and review within basic-structure reasoning.

[ANALYSIS] India therefore separates power enough to prevent concentration, but not so absolutely as to paralyse responsible government.

Why this earns marks: It directly answers the contrast, uses named Articles and cases, explains the mechanism of overlap and ends with a qualified verdict.

Mains PYQ 2 - UPSC 2021 GS-II Q1

Question: "'Constitutional Morality' is rooted in the Constitution itself and is founded on its essential facets. Explain the doctrine of 'Constitutional Morality' with the help of relevant judicial decisions." **10 marks · 150 words.**

Provenance: Official UPSC previous-paper listing; repository ledger
_PYQ-ROUTING-MAINS-GS1-GS2-ESSAY-2018-2023.md, 2021 GS-II Q1.

Model answer

[ANALYSIS] Constitutional morality is fidelity to constitutional forms, procedures and values over personal, partisan or majoritarian preference. Ambedkar, drawing on George Grote, treated it as a democratic habit required to make institutions work.

[FACT] Its essential facets are rule of law; limited and reasoned power; respect for institutional roles; liberty, equality, dignity and fraternity; minority protection; and accountability of constitutional functionaries. The Preamble and Articles 14, 15, 19, 21 and 25 provide textual anchors.

[FACT] In *Navtej Singh Johar* (2018), constitutional morality prevailed over exclusionary social morality. In *Indian Young Lawyers Association* (2018), the Court tested religious exclusion against equality, dignity and religious freedom. In *Government of NCT of Delhi v. Union of India* (2018), the doctrine informed representative responsibility and federal balance.

[LIMIT] The doctrine becomes subjective if detached from text, structure and precedent. It cannot be a judge's private morality.

[ANALYSIS] Constitutional morality thus converts formal constitutional authority into restrained, inclusive and justified public power.

Why this earns marks: It defines the doctrine, identifies essential facets, supplies relevant judicial decisions and includes the principal legitimacy caution.

Solved Prelims PYQs

Prelims PYQ 1 - 2018 GS-I Q40: relationship between law and liberty

Source status: Demand-only repository ledger; official key unavailable locally. Options are not reconstructed.

INFERRED ANSWER - NOT OFFICIALLY VERIFIED LOCALLY · confidence high: General, prospective and constitutionally reviewable law is a condition of ordered liberty because it restrains arbitrary coercion. Law and liberty are not simple opposites.

Why this solution is safe: It answers the routed concept without inventing option wording or an official key.

Prelims PYQ 2 - 2018 GS-I Q45: main features of rule of law

Source status: Demand-only repository ledger; official key unavailable locally. Options are not reconstructed.

INFERRED ANSWER - NOT OFFICIALLY VERIFIED LOCALLY · confidence high: Dicey's core elements are supremacy of regular law over arbitrary power, equality before law and the legal protection of rights through courts.

Why this solution is safe: It preserves the exact demand family and gives the standard constitutional distinction.

Prelims PYQ 3 - 2020 GS-I Q7

Exact locally extracted question: "A constitutional government by definition is: (a) government by legislature (b) popular government (c) multi-party government (d) limited government."

INFERRED ANSWER - OFFICIAL KEY NOT HELD LOCALLY · confidence high: D, limited government.

Elections, parties or legislatures may exist without effective limits; constitutional government is defined by legally bounded authority.

Why this solution is safe: It states the key status and explains the defining criterion.

Prelims PYQ 4 - 2021 GS-I Q87: definition of State in political theory

Source status: Demand-only repository ledger; official key unavailable locally.

INFERRED ANSWER - NOT OFFICIALLY VERIFIED LOCALLY · confidence high: Population, territory, government and sovereignty are the conventional four elements.

Why this solution is safe: No fictional options are supplied.

Prelims PYQ 5 - 2021 GS-I Q90: best safeguard of liberty in liberal democracy

Source status: Demand-only repository ledger; official key unavailable locally.

INFERRED ANSWER - NOT OFFICIALLY VERIFIED LOCALLY · confidence depends on exact options: An independent judiciary operating through rule of law is the strongest conventional institutional safeguard; alert citizens and a free press remain supporting safeguards.

Why this solution is safe: The uncertainty caused by unavailable exact options is disclosed.

Prelims PYQ 6 - 2021 GS-I Q94: constitutional government and limiting authority

Source status: Demand-only repository ledger; official key unavailable locally.

INFERRED ANSWER - NOT OFFICIALLY VERIFIED LOCALLY · confidence high: Constitutional government is limited government whose powers are defined, distributed and restrained.

Why this solution is safe: The inference matches the owner concept and does not claim an official key.

Prelims PYQ 7 - 2023 GS-I Q33

Exact locally extracted question: Which statement best reflects the chief purpose of a Constitution? (a) determines objectives for necessary laws (b) enables political offices and government (c) defines and limits powers of government (d) secures social justice, equality and security.

INFERRED ANSWER - OFFICIAL KEY NOT HELD LOCALLY · confidence high: C. A Constitution both constitutes and limits governmental authority; the other options describe partial objectives.

Why this solution is safe: It uses the exact extracted wording and distinguishes the defining function from important but partial purposes.

Prelims PYQ 8 - 2023 GS-I Q84

Exact locally extracted demand: Statement I says 600 mm × 400 mm is a standard National Flag size; Statement II says the flag's length-to-width ratio is 3:2.

INFERRED ANSWER - OFFICIAL KEY NOT HELD LOCALLY · confidence high: Both statements are correct and Statement II explains Statement I because 600:400 simplifies to 3:2.

Why this solution is safe: The calculation is explicit; the item is cross-owned with national-symbol rules.

Prelims PYQ 9 - 2024 GS-I Q74

Exact official Set-A demand: Part IX-A - Municipalities; Part XVIII - Emergency Provisions; Part XX - Amendment of the Constitution. Which pairs are correctly matched?

OFFICIALLY VERIFIED SET-A ANSWER: D, all three. Part IX-A concerns Municipalities, Part XVIII Emergency Provisions and Part XX constitutional amendment.

Provenance: books\prelima_question_paper_answers\2024-GS1-Set A.pdf and Ans-2024-GS1.pdf; repository 2024-2025 routing ledger.

Why this solution is safe: It uses the official Set-A paper and key and states each mapping independently.

Six original solved Mains models

Original 10-marker 1

Question: Explain why single citizenship is an integrating feature rather than proof that India is unitary. **10 marks · 150 words.**

Demand: Define the feature, show its integrating mechanism, and qualify it within federalism.

Model answer

[FACT] India combines a dual polity with single Indian citizenship, unlike federations such as the United States that constitutionally recognise dual citizenship.

[ANALYSIS] Single citizenship creates common civil and political membership across States. It supports mobility, fraternity and equal national identity. It works with an integrated judiciary and All-India Services to create legal and administrative unity.

[FACT] Yet federalism remains real: Union and States possess constitutionally allocated legislative and executive fields; States have elected governments; Rajya Sabha supplies territorial representation; courts adjudicate competence disputes.

[LIMIT] Residence-based qualifications may operate where constitutionally and legally permitted, and common citizenship does not erase linguistic, cultural or State identities.

[ANALYSIS] Single citizenship is therefore an integrating device within a federation, not evidence that constitutional power is unitary.

Why this earns marks: Direct distinction, named federal counter-evidence, mechanism and qualification.

Original 10-marker 2

Question: Explain the Indian synthesis of parliamentary power and judicial review. **10 marks · 150 words.**

Demand: Avoid declaring either Parliament or courts sovereign; explain the constitutional allocation.

Model answer

[FACT] India adopts British-style responsible government and broad parliamentary legislation, while also adopting written rights and American-influenced judicial review.

[FACT] Parliament legislates within the Seventh Schedule and exercises constituent power under Article 368. Courts enforce limits through Articles 13, 32 and 226. *Kesavananda Bharati* subjects amendment to the basic-structure doctrine; *Maneka Gandhi* requires fair, just and reasonable Article 21 procedure.

[ANALYSIS] The design prevents two absolutes: Westminster parliamentary sovereignty and an unlimited judicial government. Parliament may change policy and most constitutional text; courts may invalidate unconstitutional action but must remain within jurisdiction, text and precedent.

[LIMIT] Judicial review is not judicial administration, and parliamentary majority is not a waiver of rights or federal competence.

[ANALYSIS] The Constitution is supreme; Parliament and courts are coordinate institutions exercising assigned, checked powers.

Why this earns marks: It gives the precise thesis, constitutional anchors, cases and a balanced limit.

Original 15-marker 1

Question: "The Indian Constitution is borrowed in ancestry but original in design." Discuss. **15 marks · 250 words.**

Model answer

[ANALYSIS] Constitutional originality lies not in inventing every component but in selecting, rejecting and recombining devices for India's democratic, social and territorial conditions.

[FACT] Britain supplied cabinet government, rule of law, writs, single citizenship and bicameralism; India rejected hereditary monarchy and unlimited parliamentary sovereignty. The United States influenced Fundamental Rights, judicial review, impeachment and the Vice-President; India rejected presidential government, dual citizenship and rigid organ separation. Canada influenced a strong-Centre federation and Union residuary power; Ireland DPSP; Australia the Concurrent List and joint sitting; South Africa amendment procedure; Japan "procedure established by law".

[FACT] The Government of India Act, 1935 supplied federal, gubernatorial, judicial, service, emergency and administrative structures. Yet popular sovereignty, universal franchise, republican government, justiciable rights and responsible ministries transformed their source and purpose.

[ANALYSIS] Distinctive combinations resulted: parliamentary federalism; rights plus non-justiciable social directives; single citizenship within a dual polity; normal federal operation with emergency centralisation; and asymmetry within common citizenship.

[LIMIT] Borrowing can retain centralising and legalistic habits, and transplantation does not guarantee suitable practice. Constitutional morality and institutions determine whether adaptation succeeds.

[ANALYSIS] The "bag of borrowings" charge therefore mistakes the genealogy of parts for the identity of the whole.

Why this earns marks: It uses comparison to prove adaptation, identifies rejected models, adds indigenous transformation and reaches a qualified verdict.

Original 15-marker 2

Question: Independent constitutional bodies strengthen democracy only when independence is joined to accountability. Examine. **15 marks · 250 words.**

Model answer

[ANALYSIS] Constitutional bodies disperse integrity functions so incumbents do not exclusively control elections, audit, recruitment or fiscal recommendations.

[FACT] Article 324 places election superintendence with the Election Commission; Articles 148-151 constitutionalise independent public audit through the CAG; Articles 315-323 protect Public Service Commissions; Article 280 provides a periodic Finance Commission. Tenure, removal rules, charged expenditure or protected service conditions reduce ordinary executive pressure, though safeguards differ.

[ANALYSIS] Independence improves credibility: elections require neutral administration; audit enables legislative control of expenditure; merit recruitment limits patronage; fiscal recommendations structure Union-State sharing.

[FACT] These bodies remain accountable through constitutional text, reasoned decisions, reports to legislatures, public scrutiny and judicial review. Independence is functional, not personal immunity or policy sovereignty.

[LIMIT] Appointment processes, vacancies, information asymmetry and post-tenure incentives can weaken real autonomy. Conversely, unchecked insulation can produce opacity and institutional overreach.

[ANALYSIS] The constitutional objective is protected competence with public reason: enough insulation to resist incumbents, enough accountability to remain lawful and democratic.

Why this earns marks: It covers four named bodies, explains why safeguards matter, and balances autonomy against accountability risks.

Original 20-marker 1

Question: Evaluate the strengths and internal tensions of the salient features of the Indian Constitution. **20 marks · 250 words.**

Model answer

[ANALYSIS] The Constitution is an architecture of paired goals: authority and restraint, unity and diversity, political democracy and social transformation. Its strengths arise from interaction; its tensions arise when one pole overwhelms the other.

[FACT] Federal distribution, elected States and judicial adjudication accommodate territory, while Union residuary power, single citizenship, All-India Services and emergency provisions create national capacity. This enables coordination but risks central overreach.

[FACT] Parliamentary responsibility permits removal of the executive through the lower House. Yet party discipline and stable majorities can convert responsibility into executive dominance. Functional separation and judicial review supply counterweights, though judicial overreach and appointment concerns raise legitimacy questions.

[FACT] Parts III, IV and IV-A join liberty, social welfare and civic responsibility. *Minerva Mills* supports harmony, but rights restrictions and redistributive policy remain contested. Universal franchise and independent election administration create political equality, while social inequality can restrict substantive participation.

[FACT] Asymmetry, cultural rights, Scheduled-Area arrangements and affirmative action accommodate diversity. Uniformity may aid national standards, but coerced sameness can damage fraternity. Detail and graded amendment bring clarity and adaptability; they also create complexity and litigation.

[LIMIT] No feature is self-executing. Parties, conventions, institutional capacity, access to remedies and constitutional morality shape outcomes.

[ANALYSIS] The design is strongest when central capacity remains federal, majority rule remains rights-bound, review remains restrained and transformation remains accountable.

Why this earns marks: It evaluates six paired tensions with named evidence and gives a graded, demand-responsive verdict.

Original 20-marker 2

Question: A detailed written Constitution does not by itself guarantee constitutionalism. Analyse with reference to India's salient features. **20 marks · 250 words.**

Model answer

[ANALYSIS] A Constitution creates and distributes authority; constitutionalism requires that authority to be effectively limited, accountable and remedial in practice. India's detail is therefore necessary evidence, not a sufficient guarantee.

[FACT] Written federal lists, Articles 13, 32 and 226, cabinet responsibility, amendment procedure, emergency safeguards and independent bodies create visible legal standards. Detail accommodates diversity, defines institutions and reduces dependence on unwritten consensus.

[ANALYSIS] Yet operation depends on conventions and incentives. A disciplined majority can weaken legislative scrutiny despite collective responsibility. A formally federal text can be centralised through fiscal, gubernatorial or emergency practice. Rights require accessible courts and compliance; independent bodies require credible appointments, resources and transparency. Parts IX and IX-A do not guarantee functions, funds and functionaries.

[FACT] Constitutional morality supplies the missing operating ethic: actors respect forms, procedures, minority rights and institutional restraint. *Navtej Singh Johar* shows constitutional values checking social majoritarianism; *Government of NCT of Delhi* links institutional conduct to representative and federal principles.

[LIMIT] Constitutional morality must remain text-linked; otherwise it risks subjective substitution. Likewise, judicial review cannot replace administration or democratic deliberation.

[ANALYSIS] India's detailed Constitution creates the infrastructure of constitutionalism, but institutions, public reason, remedies and self-restraint determine whether the infrastructure works.

Why this earns marks: It distinguishes Constitution from constitutionalism, uses multiple features as evidence, analyses implementation gaps and qualifies the morality/review solution.